99-8576

No.

Supreme Court, U.S.
FILED
MAR 6 2000
OFFICE OF THE CLERK

IN THE

Supreme Court of the United States

OCTOBER TERM, 1999

PAUL L. GLOVER,
Petitioner,

v.

UNITED STATES OF AMERICA,
Respondent.

ORIGINAL

On Petition for a Writ of Certiorari to the United States Court of Appeals for the Seventh Circuit

PETITION FOR A WRIT OF CERTIORARI

MICHAEL L. WALDMAN
(Counsel of Record)
FRIED, FRANK, HARRIS, SHRIVER
& JACOBSON
1001 Pennsylvania Avenue, NW, Suite 800
Washington, DC 20004
(202) 639-7000

Counsel for Petitioner

43 pp

QUESTION PRESENTED

One year after his direct appeal had concluded, Mr. Glover discovered that his 84-month prison sentence was based on an incorrect calculation under the U.S. Sentencing Guidelines. While his original case was pending, the Seventh Circuit had issued a decision in another case interpreting a Guidelines issue in favor of defendants. Mr. Glover filed the instant action pursuant to 28 U.S.C. § 2255 to correct his sentence, on the ground that his attorney had provided ineffective assistance in failing to raise this binding Seventh Circuit decision.

The court of appeals affirmed the dismissal of Mr. Glover's Section 2255 action. In light of the dispositive appellate ruling that his counsel never raised, the court of appeals assumed that Glover's attorney performed inadequately. It also assumed that the deficient performance led to an offense level under the Sentencing Guidelines which was two levels higher than it should have been, and that this error caused Mr. Glover to receive a sentence that was 6 to 21 months higher than he should have received. Nevertheless, the Seventh Circuit held that such an increased sentence due to counsel's deficient performance "is not sufficiently significant to be cognizable on collateral attack." (App. 2). The questions on which review is sought are:

1. Whether the court of appeals erred in holding that an additional 6 to 21 months in prison due to counsel's error relating to the sentencing guidelines fails to satisfy the "prejudice" prong of *Strickland v. Washington*, 466 U.S. 668 (1984).

2. Whether the court of appeals erred in holding that a 2-level error in the offense level under the sentencing guidelines was *per se* insufficient to satisfy the "prejudice" prong of *Strickland v. Washington*, 466 U.S. 668 (1984), even where this 2-level error resulted in the petitioner being sentenced to an additional 6 to 21 months in prison.

PARTIES

All of the parties to the proceedings below are listed in the caption of the case, *supra*. *See* Sup. Ct. R. 14.1(b).

TABLE OF CONTENTS

Page

QUESTIONS PRESENTED i

PARTIES ii

TABLE OF AUTHORITIES iv

OPINIONS BELOW 1

JURISDICTION 2

PERTINENT CONSTITUTIONAL AND STATUTORY PROVISIONS 2

SUMMARY OF THE ARGUMENT 2

STATEMENT OF THE CASE 5

1. Conviction and Sentence 5

2. Section 2255 Motion 5

3. District Court's Decision 6

4. Court of Appeals' Decision 7

REASONS FOR GRANTING THE PETITION 8

A. The Seventh Circuit's "Significant Prejudice" Requirement Is Contrary to Supreme Court Precedent 9

B. The Seventh Circuit's Interpretation of "Prejudice" Conflicts With Other Circuits and District Courts 14

C. The Seventh Circuit's "Significant Prejudice" Requirement Leads to Arbitrary And Inconsistent Results 20

D. This Case Presents An Issue of Recurring Importance 22

CONCLUSION 24

TABLE OF AUTHORITIES

Cases **Page**

Allen v. United States,
175 F.3d 560 (7th Cir. 1999) 8, 21, 23

Argersinger v. Hamlin,
407 U.S. 25 (1972) 3, 12

Arredondo v. United States,
178 F.3d 778 (6th Cir. 1999) 19

Baldasar v. Illinois,
446 U.S. 222 (1980) 13

Baldwin v. New York,
399 U.S. 66(1970) 12, 13

Burgos v. United States,
968 F.Supp. 380 (N.D. Ill. 1997) 8, 23

Davis v. United States,
1998 WL 142369 (N.D. Ill. March 19, 1998) 8, 23

Day v. United States,
191 F.3d 455, 1999 WL 528145 (7th Cir. July 20, 1999) 23

Duncan v. Louisiana,
391 U.S. 145 (1968) 13

Durrive v. United States,
4 F.3d 548 (7th Cir. 1993) ..... *passim*

Fout v. United States,
165 F.3d 32, 1998 WL 636780 (7th Cir. Aug. 27, 1998) 23

Gil v. United States,
4 F. Supp. 2d 760 (N.D. Ill. 1998) 14, 23

Gonzalez v. United States,
967 F. Supp. 326 (N.D. Ill. 1997) 14, 23

Harden v. United States,
191 F.3d 456, 1999 WL 547979 (7th Cir. July 20, 1999) 23

Jackson v. Leonardo,
162 F.3d 81 (2d Cir. 1998).....16, 17

Lockhart v. Fretwell,
506 U.S. 364 (1993).....*passim*

Martin v. United States,
109 F.3d 1177 (7th Cir. 1996).....*passim*

Robinson v. United States,
196 F.3d 748 (7th Cir. 1999).....23

Scott v. Illinois,
440 U.S. 367 (1979).....13

Smith v. United States,
871 F. Supp. 251 (E.D. Va. 1994).....19

Spriggs v. Collins,
993 F.2d 85 (5th Cir. 1993).....4, 17, 18, 19

Strickland v. Washington,
466 U.S. 668 (1984).....*passim*

Unger v. United States,
8 F. Supp. 1151 (E.D. Wis. 1998).....23

United States v. Allen,
175 F.3d 560 (7th Cir. 1999).....8

United States v. Day,
969 F.2d 39 (3d Cir. 1992).....22

United States v. Evans,
1995 WL 423693 (N.D. Ill. July 17, 1995).....23

United States v. Ford,
918 F.2d 1343 (8th Cir. 1990).....15

United States v. Glover,
101 F.3d 1183 (7th Cir. 1996).....5, 6

United States v. Granados,
168 F.3d 343 (8th Cir. 1999).....15

United States v. Harfst,
168 F.3d 398 (10th Cir. 1999).....19

United States v. Headley,
923 F.2d 1079 (3d Cir. 1991).....16

United States v. Hubbard,
1997 WL 639232 (N.D. Ill. Oct. 6, 1997).....14, 22, 23

United States v. Kissick,
69 F.3d 1048 (10th Cir. 1995).....19

United States v. Murray,
176 F.3d 476, 1999 WL 187192, (4th Cir. 1999).....18

United States v. Palomba,
31 F.3d 1456 (9th Cir. 1994).....17

United States v. Paz,
1997 WL 158338 (N.D. Ill. March 31, 1997).....21, 23

United States v. Segler,
37 F.3d 1131 (5th Cir. 1994).....18

United States v. Soto,
132 F.3d 56 (D.C. Cir. 1997).....16, 22

United States v. Tai,
972 F. Supp. 434 (N.D. Ill. 1997).....22, 23

United States v. Thompson,
27 F.3d 671 (D.C. Cir.).....16

United States v. Wheeler,
81 F.3d 171, 1996 WL 155139 (9th Cir. April 2, 1996).....17

United States v. Wilson,
98 F.3d 281 (7th Cir. 1996).....6

Statutes, Regulations and Other Materials

18 U.S.C. § 1954.....5

18 U.S.C. § 1956(a)(1)(B)(I).....5

18 U.S.C. § 1962(d).....5

26 U.S.C. § 7206.....5

28 U.S.C. § 1254(a) 2
28 U.S.C. § 2255 ..... *passim*
Sup. Ct. R. 14.1(b) ii
U.S.S.G. § 301.2 ..... 5, 7

IN THE

SUPREME COURT OF THE UNITED STATES

OCTOBER TERM, 1999

No.

PAUL L. GLOVER,
Petitioner,
v.

UNITED STATES OF AMERICA,
Respondent.

On Petition for a Writ of Certiorari to the United States Court of Appeals for the Seventh Circuit

PETITION FOR A WRIT OF CERTIORARI

Paul L. Glover respectfully petitions for a writ of certiorari to review the judgment of the United States Court of Appeals for the Seventh Circuit in this case.

OPINIONS BELOW

The opinion of the court of appeals was reported at 182 F.3d 921 (7th Cir. 1999) (Table) and is reproduced in the Appendix at App. 1. The opinion of the United States District Court for the Northern District of Illinois was not reported and is reproduced in the Appendix at App. 3.

JURISDICTION

The judgment of the court of appeals was entered on July 15, 1999. A timely petition for rehearing was denied on October 7, 1999. (App. 8). This Court's jurisdiction is invoked under 28 U.S.C. § 1254(a).

PERTINENT CONSTITUTIONAL AND STATUTORY PROVISIONS

The relevant constitutional provisions are the Sixth and Fourteenth Amendments to the United States Constitution.

SUMMARY OF THE ARGUMENT

This case raises an issue of recurring importance — whether defense counsel's error relating to the U.S. Sentencing Guidelines which causes the defendant to be sentenced to additional months of incarceration (in this case, between 6 and 21 months of additional imprisonment) constitutes ineffective assistance of counsel under the Sixth Amendment. Here, due to counsel's ineffective performance, the district court made a clear error in calculating the offense level. Under the correct offense level, petitioner's sentence of imprisonment should have been between 6 to 21 months lower than the 84-month sentence he actually received. Nevertheless, while conceding counsel's deficient performance and the incorrect sentencing calculations, the court of appeals denied petitioner's motion under 28 U.S.C. § 2255 to correct his sentence. Applying the governing case law in the circuit, the Seventh Circuit held that an additional 6 to 21 months in prison was not "sufficiently significant" to satisfy the prejudice prong of the ineffective assistance of counsel standard. According to the Seventh Circuit, to be "significant prejudice," a counsel's error must lead to an incorrect sentence of more than two offense levels under the Sentencing Guidelines.

The Seventh Circuit's rule represents a marked and unwarranted departure from this Court's established precedents relating to constitutionally ineffective assistance of counsel. In adding a a new "significance" threshhold, the Seventh Circuit misconstrues the prejudice requirement as set out in *Strickland v. Washington*, 466 U.S. 668 (1984), and interpreted in *Lockhart v. Fretwell*, 506 U.S. 364 (1993). Nowhere in *Strickland* does the Court even suggest that additional months in prison due to counsel's deficient performance would not constitute prejudice. Contrary to the Seventh Circuit's reasoning, the Supreme Court's decision in *Lockhart* also does not support the conclusion that defendant must show "significant prejudice." *Lockhart* addressed the narrow circumstances where the habeas petitioner's ineffectivenesss claim was based on the attorney's failure to invoke at sentencing a court of appeals decision that was later overruled. The *Lockhart* Court refused to allow the habeas petitioner to obtain "a windfall;" that is a far cry from the instant case where Mr. Glover simply asks for the correct application of the Sentencing Guidelines. Moreover, the Seventh Circuit's decision is contrary to this Court's Sixth Amendment jurisprudence which has recognized that any term of imprisonment, even one day, requires the effective assistance of counsel. *See Argersinger v. Hamlin*, 407 U.S. 25 (1972) (rejecting argument that right to counsel exists only for felony offenses and holding that no person may be imprisoned for *any* period without presence of counsel at trial).

Not surprisingly, the decision below also conflicts with other courts of appeals and district courts which have declined to adopt the Seventh Circuit's "significant prejudice" requirement. The D.C., Third, and Eighth Circuits have not adopted the Seventh Circuit's "significant prejudice" rule and have granted Section 2255 motions where the change due to counsel's error is two offense levels or less. Furthermore, and even more striking, the Second

and Ninth Circuits have granted Section 2255 motions where there is no effect on the actual prison term of the petitioner. Even those circuit courts which favor a "significant prejudice" test – the Fourth, Fifth and Tenth Circuits -- have not adopted the Seventh Circuit's rule that a two-offense level change due to counsel's deficient performance is *per se* insufficient to constitute "prejudice" under *Strickland*. The Fifth Circuit has expressly recognized "an exception" for the very type of situation raised by Mr. Glover here -- "when a deficiency by counsel resulted in a specific, demonstrable enhancement in sentencing."[1] *Spriggs v. Collins*, 993 F.2d 85, n.4 (5th Cir. 1993).

The Seventh Circuit's "significant prejudice" rule also has led to inconsistent results in the lower courts. These courts have not been provided guidelines or standards for determining whether an increased sentence due to counsel's error is "significant." Instead, the lower courts are left to their own devices in attempting to evaluate if it is the number of months, number of offense levels, percentage of total sentence, or some other variable which is critical to showing sufficient prejudice. The seemingly arbitrary nature of the lower court decisions relating to what constitutes "significant prejudice" damages the public's confidence in the court system and precludes the consistency in sentencing which was the goal of the Sentencing Guidelines.

This Court's review is necessary to establish uniformity on the issue of whether, and in what circumstances, additional months in prison due to counsel's deficient performance constitutes constitutionally ineffective assistance. There already have been numerous cases

---

1 The Sixth Circuit has noted the split within the courts of appeals and expressed doubts about the Seventh Circuit's position. Thus far, however, the Sixth Circuit has not been required to rule on the issue.

across the country which involve the precise situation and issue raised by Mr. Glover's case. Given the frequently recurring nature of the problem of mistakes by counsel relating to Sentencing Guidelines calculations, it is especially important that this Court grant the writ in this case and end the confusion among the lower courts.

STATEMENT OF THE CASE

1. Conviction and Sentence

Following a jury trial, defendant Paul Glover was found guilty of one count of a conspiracy in violation of the Racketeer Influenced and Corrupt Organizations Act, 18 U.S.C. § 1962(d); eleven counts of soliciting and receiving kickbacks in violation of 18 U.S.C. § 1954; two counts of money laundering in violation of 18 U.S.C. § 1956(a)(1)(B)(I); and four counts of tax evasion in violation of 26 U.S.C. § 7206. At the time of sentencing, it was determined that Mr. Glover's total offense level was 28 and his criminal history category was level I, resulting in a guideline range of 78 to 97 months. He was sentenced to 84 months' incarceration. Mr. Glover's conviction and sentence were affirmed on direct appeal, where he was represented by the same counsel who represented him at trial. *See United States v. Glover*, 101 F.3d 1183 (7th Cir. 1996).

2. Section 2255 Action

Less than one year after the decision on appeal became final, Glover filed his present action in the U.S. District Court for the Northern District of Illinois pursuant to 28 U.S.C. § 2255 to vacate, set aside or correct his sentence. Mr. Glover contended that his sentencing range was incorrectly calculated because his money laundering offenses were not grouped with his conspiracy and kickback offenses. *See* U.S.S.G. § 301.2. He further contended that his counsel

was ineffective for failing to urge this issue at the time of sentencing and for failing to raise the issue at all on direct appeal. *In United States v. Wilson*, 98 F.3d 281, 282-84 (7th Cir. 1996), the Seventh Circuit had held that money laundering offenses and mail fraud offenses should be grouped together. As the government conceded before the district court, *Wilson* would be controlling as to the grouping of Mr. Glover's conspiracy, kickback, and money laundering offenses. The *Wilson* case was argued on April 1, 1996 and issued on October 17, 1996, months before the decision on Mr. Glover's appeal was issued. *Glover*, 101 F.3d at 1183.

In his Section 2255 motion, Mr. Glover claimed that his counsel's ineffective assistance during the sentencing had caused Glover to receive an incorrect sentence. Mr. Glover was sentenced to 84 months incarceration based on the court's finding of an offense level of 28 and a guideline range of 78 to 97 months. Had the money laundering been grouped with the conspiracy and kickback offenses, the total offense level would have been 26 and the guideline range would have been 63 to 78 months. Due to his counsel's deficient performance, Mr. Glover's sentence was incorrectly extended by at least 6 months and possibly up to 21 months.

3. District Court's Decision

The federal district court dismissed petitioner's Section 2255 motion. The district court found it unnecessary to consider the issue of whether Mr. Glover's counsel's performance was deficient. (App. 5). The court noted that Seventh Circuit precedent required that "[w]hen, as here, the constitutional basis for relief on such a claim is ineffective assistance of counsel, the potential change in sentence must be a 'significant' amount in order to satisfy the prejudice prong of an ineffective assistance of counsel claim." (App. 5). Applying the Seventh Circuit's rulings in *Durrive v. United States*, 4 F.3d 548 (7th Cir. 1993), and *Martin v. United States*, 109 F.3d 1177, 1178 (7th Cir. 1996), *cert. denied*, 522 U.S. 931 (1997), the district court concluded

that the Seventh Circuit stated a *per se* rule that a change of two offense levels would not be sufficient to constitute "significant prejudice." (App. 5-6). Accordingly, the district court held that "Because the error claimed in the present case [between 6 and 21 months of additional imprisonment] did not have a significant effect on Glover's sentence, he does not state any basis for granting § 2255 relief." (App. 6).

4. Court of Appeals' Decision

The Seventh Circuit affirmed on appeal, relying on the same basic rationale as the district court. The court of appeals assumed that Mr. Glover's attorneys had performed deficiently in failing to argue the correct interpretation of U.S.S.G. § 301.2 relating to the grouping of his money laundering offenses with his conspiracy and kickback offenses. (App. 1). The Seventh Circuit, however, held that under the existing precedent in that court, Mr. Glover could not demonstrate sufficient prejudice to satisfy the second prong of *Strickland v. Washington*, 466 U.S. 668, 687 (1984). The Seventh Circuit stated, in pertinent part:

> This court has held that only a significant increase in the sentencing rises to the level of the type of prejudice that will support an ineffective assistance of counsel claim on collateral attack.
>
> At sentencing, the district court determined that Glover's adjusted offense level under the Sentencing Guidelines was 28 and his criminal history category was I, resulting in a sentencing range of 78 to 97 months in prison. The court selected a mid-point in the range, sentencing Glover to 84 months in prison. Glover alleges that, but for the errors of his counsel, his adjusted offense level would have been 26, resulting in a range of 63-78 months imprisonment. Thus, he argues, his sentence would have been 6 to 21 months lower than the 84-month sentence he received. Unfortunately for Glover, under *Martin* and *Durrive*, this potential decrease is not sufficiently significant to be cognizable on collateral attack.

(App. 1-2) (citations omitted).

REASONS FOR GRANTING THE PETITION

In *Durrive v. United States*, 4 F.3d 548 (7th Cir. 1993), the Seventh Circuit first announced that errors in sentencing calculations caused by counsel's deficient performance must be "significant" to constitute constitutionally ineffective assistance of counsel. According to the *Durrive* court, only "Grave errors by judge and counsel" -- "[f]or instance, an error that produces a large effect on the sentence" – could be deemed prejudicial for *Strickland* purposes. *Id* at 551. Subsequent panels within the Seventh Circuit, including in the instant case, have followed *Durrive*. *See, e.g., Martin*, 109 F.3d at 1177-78; *Allen v. United States,*, 175 F.3d 560, 563 (7th Cir. 1999).

This Court should grant the writ in Mr. Glover's case to review and reverse this Seventh Circuit rule requiring "significant prejudice" of more than two offense levels under the Sentencing Guidelines. The Seventh Circuit's rule has no support in *Strickland* or subsequent Supreme Court jurisprudence. The "significant prejudice" rule also has not been widely followed in the circuit courts or trial courts outside of the Seventh Circuit. Even within the Seventh Circuit, three judges, including one of its original proponents, have strongly attacked the rule that additional months in prison does not constitute "significant" prejudice, *Martin v. United States*, 109 F.3d 1177, 1178 (7th Cir. 1997) (Judge Rovner, dissenting on denial of *en banc* review), and district courts have considered the reasoning underlying this rule to be "questionable," *Burgos v. United States,* 968 F.Supp. 380, 384 (N.D. Ill. 1997), and "the source of considerable debate." *Davis v. United States*, 1998 WL 142369 *3 n.5 (N.D. Ill. March 19, 1998) (citing numerous cases).

A. The Seventh Circuit's "Significant Prejudice" Requirement Is Contrary to Supreme Court Precedent

The Seventh Circuit has adopted a rule that an increased prison term due to a sentencing error caused by counsel's deficient performance does not constitute prejudice for the purpose of the *Strickland* analysis unless the increase is significant. Unfortunately, the Seventh Circuit's rule is contrary to Supreme Court precedent.

The Supreme Court in *Strickland v. Washington*, 466 U.S. 668, 690 (1984), established a two-part test for reviewing claims of ineffective assistance of counsel. First, a defendant must demonstrate that his counsel's performance fell below an objective standards of reasonableness. Second, a defendant must demonstrate that he suffered prejudice due to his counsel's deficient performance. This second prong requires that the defendant "show that there is a reasonable probability . . . that, but for counsel's unprofessional errors, the result of the proceeding would have been different." *Id.* at 694.

Nowhere in *Strickland* does the Court state that the defendant must show "*significant* prejudice." Nor is there any indication that the defendant must show a large increase in his prison sentence. Instead, *Strickland* makes clear that the test is whether counsel's errors have adversely affected the proceeding's outcome: "taking due account of the effect of the errors on the remaining findings, a court making the prejudice inquiry must ask if the defendant has met the burden of showing that the decision reached would reasonably likely have been different absent the errors." *Id.* at 696. Plainly, as the court of appeals itself assumed here, Mr. Glover can demonstrate that the sentence in his case "would reasonably likely have been different" had his counsel asserted the groupings issue and the dispositive Seventh Circuit case in his favor.

In support of grafting a "*significant* prejudice " requireme nto *Strickland*, the Seventh Circuit in *Durrive* relied on a single quote from *Lockhart v. Fret* 06 U.S. 364 (1993):

> [A]n analysis focusing solely on mere outcome determination without attention to whether the result of the proceeding was fundamentally unfair or unreliable, is defective. To set aside a conviction or sentence solely because the outcome would have been different but for counsel's error may grant the defendant a windfall to which the law does not entitle him.

Durrive, 4 F.3d at 551 (quoting *Lockhart*, 506 U.S. at 369-70).[2] The Seventh Circuit, however, failed to explain why this quotation from *Lockhart* should mandate a requirement that counsel's error cause a sizeable increase in defendant's prison sentence. There can be no doubt that the "result of the proceeding was fundamentally unfair or unreliable" in Mr. Glover's case—in fact, Glover received a sentence which was 6 to 21 months more than he should have received under the applicable law and regulations. There also can be no claim that Glover received "a windfall to which the law does not entitle him"—in fact, his counsel's deficient performance caused Glover to receive an injury which he should not have received, *i.e.*, a sentence longer than the Sentencing Guidelines properly allowed.

Lockhart involved a highly unusual set of facts. The question in *Lockhart* was whether a habeas petitioner could prevail on an ineffectiveness claim based on the attorney's failure to invoke at sentencing a decision of the Eighth Circuit that was later overruled. Faced with this

---

2 As Judge Rovner noted in criticizing the reasoning behind the Seventh Circuit's rule,

> Although *Durrive* held out *Lockhart* as the foundation for its holding, I believe the court overlooked not only the context of the Supreme Court's [*Lockhart*] decision but limitations in the very language of its opinion.

Martin, 109 F.3d at 1180 (Judge Rovner, dissenting).

issue, the court of appeals in *Lockhart* had ruled in favor of Fretwell on the ground that had his counsel made a timely objection, the trial court would have been compelled to follow then-controlling Eighth Circuit law and modify his sentence to life imprisonment. The Supreme Court disagreed with this single-minded focus on "mere outcome determination, " believing that such an approach would provide an unwarranted "windfall" to Fretwell since he was attempting to rely on counsel's failure to raise case law which subsequently had been discredited and rejected. According to the *Lockhart* court, counsel's error had, at most, "deprived [Fretwell] of the chance to have the state court make an error in his favor." *Id.* at 371.[3]

Fretwell's situation was in stark contrast to the instant case where Mr. Glover has been harmed by his counsel's failure to have the court apply the proper law relating to his sentence. As Judge Rovner noted in her dissent:

> Absolutely nothing in *Lockhart* addresses this situation. Nowhere does *Lockhart* suggest that a sentencing may still be described as fair and reliable when it is clear that the sentencing court has sentenced the petitioner to an excessive term, and only his attorney's ineffectiveness has prevented correction of the error either in the district court or on direct appeal. *Nothing in Lockhart remotely suggests that only when an attorney's ineffectiveness results in a 'significant' harsher sentence may the prejudice be recognized on collateral review.*

Martin, 109 F.3d at 1181-82 (emphasis added). Thus, the single Supreme Court case relied on by the Seventh Circuit does not support its attempt to add a "significance" requirement to the prejudice prong of the *Strickland* analysis.[4]

---

3 As the *Lockhart* Court noted, the defendant "has no entitlement to the luck of a lawless decisionmaker." 506 U.S. at 370 (quoting *Strickland*, 466 U.S. at 695).

4 The decision in *Lockhart* is a narrow one. As Justice O'Connor explained in her concurrence:

Footnote continued

The Seventh Circuit's rule also cannot be reconciled with fundamental Sixth Amendment jurisprudence. The Supreme Court has previously rejected the argument that a few months imprisonment is 'insignificant' for the purposes of a defendant's constitutional right to effective counsel. This was the precise issue in *Argersinger v. Hamlin*, 407 U.S. 25 (1972). There, the petitioner had been unrepresented by counsel in connection with a misdemeanor offense which had a maximum punishment of six months imprisonment. He had been convicted and sentenced to serve three months in prison. The *Argersinger* Court unanimously reversed the conviction, holding that petitioner was entitled to counsel in any case resulting in imprisonment. According to the Court, "no person may be imprisoned for any offense, whether classified as petty, misdemeanor or felony, unless he was represented by counsel at his trial." *Id.* at 37. The Supreme Court in *Argersinger* saw no reason to differentiate between three months or six months or twelve months in prison, but considered any term of imprisonment to be significant enough to implicate the Sixth Amendment's right to counsel. As the Court noted, "the prospect of imprisonment for however short a time will seldom be viewed by the accused as a 'trivial' or 'petty' matter and may well result in quite serious reprecussions. . ." *Id.* (quoting *Baldwin v. New York*, 399 U.S. 66, 73 (1970)).

Footnote continued from previous page

> Specifically, today we hold that the court making the prejudice determination may not consider the effect of an objection it knows to be wholly meritless under current governing law, even if the objection might have been considered meritorious at the time of its omission. That narrow holding, of course, precisely disposes of this case as it appeared before the Eighth Circuit.

506 U.S. at 374.

Footnote continued

In subsequent decisions, this Court has reaffirmed its *Argersinger* decision and emphasized the special nature of imprisonment. In finding no right to counsel where the defendant was ultimately fined and not imprisoned, Chief Justice Rehnquist noted:

> the [*Argersinger]* Court's conclusion [was] that incarceration was so severe a sanction that it should not be imposed as a result of a criminal trial unless an indigent defendant had been offered appointed counsel to assist in his defense, regardless of the cost to the States implicit in such a rule. The Court in its opinion repeatedly referred to trials "where an accused is deprived of his liberty" id, at 32, and to "a case that actually leads to imprisonment even for a brief period," id. at 33. The Chief Justice in his opinion concurred in the result also observed that "any deprivation of liberty is a serious matter." Id. at 41.

Scott v. Illinois, 440 U.S. 367, 372-73 (1979). *See also Baldasar v. Illinois*, 446 U.S. 222 (1980) (holding that uncounseled misdemeanor conviction may not be used under an enhanced penalty statue to convert a subsequent misdemeanor into a felony with a prison term).

The Seventh Circuit's rule -- that 6 to 21 additional months imprisonment is not "significant" -- also clashes with this Court's teachings under the right to trial by jury. The right to a jury trial is guaranteed by the Sixth Amendment for any trial where the potential punishment is imprisonment of six months or more. *See Baldwin v. New York*, 399 U.S. at 66; *Duncan v. Louisiana*, 391 U.S. 145 (1968). As the controlling opinion of Justice White stated in *Baldwin*, "no offense can be deemed 'petty' for purposes of the right to trial by jury where imprisonment for more than six months is authorized." 399 U.S. at 69.

Footnote continued from previous page

The Seventh Circuit's rule requiring a showing of "*significant* prejudice" has no support in this Court's decisions in *Strickland* or *Lockhart*. Furthermore, it conflicts with the Supreme Court's prior holdings that any term of imprisonment implicates the right to the effective assistance of counsel. The Seventh Circuit's decision below also is flatly inconsistent with the Supreme Court's conclusion that even the six months in prison is sufficient to warrant the full guarantees of the right to trial by jury. Accordingly, this Court should grant the writ and reverse the Seventh Circuit's mistaken interpretation of the Sixth Amendment of the U.S. Constitution.

B. The Seventh Circuit's Interpretation of "Prejudice" Conflicts With Other Circuits and District Courts

The Seventh Circuit has ruled that prejudice under *Strickland* requires a "significant" increase in one's prison sentence due to counsel's ineffective assistance. The Seventh Circuit has further held, as the instant case demonstrates, that such "significant prejudice" requires, at a minimum, an increase in a defendant's sentence of more than two offense levels under the sentencing guidelines. (App. 1-2).[5] The Seventh Circuit's interpretation of prejudice – that it must be "significant" and, at a minimum, exceed two offense levels under the sentencing guidelines – has not been followed by other courts of appeal or district courts outside the circuit. Indeed, there is a wide divergence of view among the lower courts on this issue of what constitutes prejudice under *Strickland* for sentencing errors.

The Eighth Circuit, for example, has twice taken a diametrically opposite position from the Seventh Circuit and granted Section 2255 motions nearly identical to Mr. Glover's action here. In *United States v. Granados*, 168 F.3d 343 (8th Cir. 1999), the petitioner challenged his conviction and 175-month sentence. He was sentenced as an offense level 32, which resulted in a range of 151-188 months. Petitioner's offense level should have been a level 30, or a range of 121-151 months. The court noted that Granados has been sentenced to additional months in prison solely "because his attorney was not familiar with the Guidelines." *Id.* at 346. In these circumstances, the Eighth Circuit did not consider there to be any question that Granados suffered prejudice and granted Granados' motion: "There can be little doubt that the petitioner's substantial rights are affected if his prison sentence is longer than it should have been." *Id.*[6] Similarly, in *United States v. Ford*, 918 F.2d 1343, 1350 (8th Cir. 1990), the Eighth Circuit found a two offense level error sufficient to satisfy *Strickland*. As the *Ford* court noted, "Had Ford's trial counsel objected to the base offense level of 34, it is possible the district court would have modified the level to reflect Ford's acceptance of responsibility. Ford's original sentence,

---

5 *See Durrive*, 4 F.3d at 551 ("Adjusting the offense level by two or three steps is exactly the routine decision that is supposed to be handled at sentencing and on direct appeal. . . . [N]o one would have dreamed that choices influencing the term of imprisonment within such a narrow range could be relitigated on collateral attack."); *Martin*, 109 F.3d at 1178 ("the sort of increase produced by a few levels' difference in sentencing calculations cannot be raised indirectly on collateral attack by complaining about counsel's work"); *Gil v. United States*, 4 F. Supp. 2d 760, 769 (N.D. Ill. 1998) ("This two-point difference does not constitute a significant difference in Gil's sentence," citing *Martin*); *United States v. Hubbard*, 1997 WL 639232, *4 (N.D. Ill. Oct. 6, 1997) ("The Seventh Circuit [in *Martin*] appeared to state a per se rule that a change of two offense levels would not satisfy the 'significant' change requirement."); *Gonzalez v. United States*, 967 F. Supp. 326, 332 (N.D. Ill. 1997) ("Gonzalez – just like *Durrive* and *Martin* –

Footnote continued

Footnote continued from previous page

complains about a two-level difference, i.e., a 'few levels' difference.' Such an argument is barred from review by way of a § 2255 motion pursuant to the holdings of *Durrive* and *Martin*.").

6 In fact, the *Granados* court raised *sua sponte* the whole issue of counsel's ineffective assistance concerning the Sentencing Guidelines, despite the fact that it had never been raised by petitioner in his pleadings.

300 months, is 38 months longer than the maximum sentence resulting from a base offense level of 32. Counsel's error had an effect on Ford's sentence, and therefore we reverse Ford's sentence . . ." *Id.*

The D.C. Circuit also has not adopted a "significant prejudice" requirement. In *United States v. Thompson*, 27 F.3d 671 (D.C. Cir.), *cert. denied*, 513 U.S. 1050 (1994), the D.C. Circuit found the prejudice prong of *Strickland* was satisfied by a one offense level change. Despite the United States' argument that Thompson had not demonstrated prejudice, the D.C. Circuit disagreed and remanded for a determination as to whether, but for counsel's deficient performance, Thompson would have been sentenced as if his offense level was 34 instead of 35. In *United States v. Soto*, 132 F.3d 56, 59 (D.C. Cir. 1997), the D.C. Circuit also applied the *Strickland* test without any "significant prejudice" threshold. The Court found in favor of Soto's ineffective assistance claim, noting that Soto's counsel error would have reduced Soto's sentence by at least two offense levels (17 months). *Id.*

The Third Circuit also has analyzed the same fact pattern as *Soto*, namely, petitioner's counsel failing to argue for a downward departure under the Guidelines for being a minimal participant in the conspiracy. *United States v. Headley*, 923 F.2d 1079 (3d Cir. 1991). The Third Circuit also did not impose any "significant prejudice" requirement, nor any requirement that the incorrect sentence involve more than two offense levels. *Id.* at 1081-82, 1084.

The Second and Ninth Circuits also have declined to graft a "significance" requirement onto the *Strickland* prejudice prong and, instead, have found prejudice where the counsel's deficient performance causes *no* additional prison time. These circuits addressed ineffective assistance of counsel claims in connection with convictions on counts which were to run concurrently with other, unreviewed convictions. *See Jackson v. Leonardo*, 162 F.3d 81 (2d Cir. 1998); *United States v. Palomba*, 31 F.3d 1456 (9th Cir. 1994). Even though there was no actual effect on the petitioner's sentence, these courts found that the possibility of enhanced sentence should petitioner be later arrested and sentenced under a repeat offender statutes constituted sufficient prejudice under *Strickland*. *See Jackson*, 162 F.3d at 86; *Palomba*, 31 F.3d at 1465.[7] The D.C. and Ninth Circuits did not debate whether the possibility of later injury from a conviction on an additional count was "significant." Nor was there any discussion about whether the possible later injury equaled a two offense level increase in prison time. These courts believed that the possibility of an impact on defendant's sentence was sufficient to satisfy *Strickland*: "It is settled that an error that may increase a defendant's sentence is prejudicial." *Palomba*, 31 F.3d at 1465 (citations omitted). While recognizing that "the degree of prejudice may not seem great," *Jackson*, 162 F.3d at 86, these circuits held that the mere possibility of a later enhanced sentence "satisfied the unfair prejudice prong under *Strickland* and [*Lockhart v.*] *Fretwell's* test for ineffective assistance." *Palomba*, 31 F.3d at 1466.[8]

Moreover, even the circuits which have required "significant prejudice" have indicated that they would not adopt the two-offense level *per se* rule that the Seventh Circuit applied here. Thus, the Seventh Circuit in *Durrive* pointed to the decision in *Spriggs v. Collins*, 993 F.2d 85 (5th Cir. 1993), in support of its rule. Spriggs had complained of counsel's failure to object to

---

7 Other possible sources of prejudice include the stigma of an improper conviction and its possible use to impeach the defendant's credibility in future proceedings. 31 F.3d at 1465.

8 In fact, the Ninth Circuit has expressly declined to adopt the "significant prejudice" rule of the Seventh Circuit: "To begin with, the Ninth Circuit has not adopted *Spriggs* [and *Durrive]* and continues to use the regular *Strickland* test." *United States v. Wheeler*, 81 F.3d 171, 1996 WL 155139 (9th Cir. April 2, 1996).

certain facts in the presentence report which might have affected the judge's exercise of his discretion in sentencing. Given the latitude of the judge's discretion, the *Spriggs* court required a showing that the attorney's deficient performance had led to a significant increase in the defendant's prison term. Yet, in *Spriggs*, the Fifth Circuit was careful to state that the "significant prejudice" concept should not be the rote, automatic rule of the Seventh Circuit here. In language which would be controlling in Mr. Glover's case, the *Spriggs* court qualified its "significant prejudice" requirement:

> "Significance" is a relative term here .... We note that one foreseeable exception to this requirement would be when a deficiency by counsel resulted in a specific, demonstrable enhancement in sentencing—such as an automatic increase for a 'career' offender or an enhancement for use of a handgun during a felony— which would have not occurred but for counsel's error.

Id. at n.4. The Fifth Circuit also has made clear that, rather than the Seventh Circuit's inflexible rule, the "significance" test in the Fifth Circuit involved the trial court's consideration of a host of factors:

> In deciding whether such prejudice occurred, a court should consider a number of factors: the actual amount of the sentence imposed on the defendant by the sentencing judge or jury; the minimum and maximum sentences possible under the relevant statute or sentencing guidelines, the relative placement of the sentence actually imposed within that range, and the various relevant mitigating and aggravating factors that were properly considered by the sentences.

Id. at 88-9. *See also United States v. Segler*, 37 F.3d 1131, 1136 (5th Cir. 1994) (same).

The Fourth and Tenth Circuits also have accepted the "significant prejudice" requirement, but these two circuits do not appear to have adopted the Seventh Circuit's rule that a two-offense level change is *per se* insufficient to demonstrate prejudice. In fact, courts in these circuits have found two-offense level changes to be satisfactory. *See, e.g., United States v. Murray*, 176 F.3d

476, 1999 WL 187192,*5 (4th Cir. 1999) (*Strickland* prejudice found where counsel's deficient performance may have caused petitioner to be sentenced as level 39, rather than level 37); *United States v. Kissick*, 69 F.3d 1048 (10th Cir. 1995) (*Strickland* prejudice found where counsel's deficient performance may have caused petitioner to be assigned a criminal history category VI, rather than a IV) (noting that, "Importantly, the *Spriggs* [decision] added that 'one foreseeable exception to this requirement would be when a deficiency by counsel resulted in a specific, demonstrable enhancement in sentencing – such as an automatic increase for a 'career' offender or an enhancement for use of a handgun during a felony – which would have not occurred but for counsel's error.'" *Id.* at 1055); *United States v. Harfst*, 168 F.3d 398 (10th Cir. 1999) (*Strickland* prejudice demonstrated where counsel's deficient performance may have caused petitioner to be sentenced at a two or four offense levels too high.); *Smith v. United States*, 871 F. Supp. 251, 256 (E.D. Va. 1994) (*Strickland* prejudice found where counsel's deficient performance may have caused petitioner to be sentenced as an offense level 40, rather than level 38).

Finally, the Sixth Circuit has recognized that the Fifth, Seventh and Tenth Circuits "have modified the second prong of the Strickland test" by requiring "that but for trial counsel's errors the defendants' non-capital sentence would have been significantly less harsh." *Arredondo v. United States*, 178 F.3d 778, 784 (6th Cir. 1999). The *Arredondo* court also noted that the Fifth Circuit provided for an "exception" where counsel's deficient performance resulted in a "specific, demonstrable enhancement in sentencing," but that it was "unclear" whether the Seventh or Tenth Circuit recognized this exception. *Id.* Because the case before it satisfied even a heightened standard of prejudice, the Sixth Circuit concluded that it "need not resolve today the degree of prejudice that is required for *Strickland* to apply to claims of ineffective assistance

during noncapital sentencing proceedings." *Id.* Nevertheless, the Sixth Circuit expressed serious misgivings about the Seventh Circuit's reasoning in *Durrive*, noting

> we question whether this issue is best addressed by modifying the prejudice prong of *Strickland*. The degree of the attorney's error may better be evaluated directly, under *Strickland's* performance.

Id.

Here, Mr. Glover suffered from a "clear, demonstrable enhancement in sentencing" due to his counsel's deficient performance – he was sentenced at an offense level 28 rather than a level 26, resulting in an additional sentence of between 6 to 21 months. The Seventh Circuit has held that Mr. Glover cannot demonstrate prejudice as a matter of law. As demonstrated above, this decision directly conflicts with the holdings of numerous other circuit courts. The courts of appeals have expressed widely divergent views on this issue. Accordingly, this Court should grant certiorari in this case to resolve this conflict and create uniformity in the federal court's handling of this important issue.

C. The Seventh Circuit's "Significant Prejudice" Requirement Leads to Arbitrary And Inconsistent Results

The Seventh Circuit refuses to find constitutionally ineffective assistance of counsel unless counsel's error relating to the sentencing guidelines causes a "significant" increase in the defendant's sentence. Other than to state that a change in "a few levels" is not sufficient prejudice, however, the Seventh Circuit has not explained how the lower courts are to determine what is a "significant" increase in a defendant's sentence. The inevitable result has been arbitrary and inconsistent lower court decisions.

Mr. Glover's case is an example of the problems inherent in the Seventh Circuit's broad rule. As an offense level 28, Glover's sentencing guideline range was 78 to 97 months and he

received an 84-month sentence. But for his counsel's deficient performance, Glover should have been sentenced as an offense level 26 with a guidelines range of 63 to 78 months. Assuming that he would have been sentenced to the low end of the correct sentencing range, Mr. Glover received an "extra" 21 months in prison due to his counsel's error. Is the Seventh Circuit saying that 21 months can never rise to the level of "significant prejudice"? The Seventh Circuit has characterized its "significant prejudice" requirement as "a rule of proportionality." *Martin*, 109 F.3d at 1178. Here, Mr. Glover's sentence was increased by up to 25 percent (21 months increase on an 84-month sentence). Is the Seventh Circuit's view that an increase in one's term of imprisonment of 25% can never rise to the level of "significant prejudice"? The Seventh Circuit seems committed to its *per se* rule that two or three offense levels can never satisfy the prejudice prong of *Strickland*. But in some cases, two or three offense levels can mean 89 to 112 months of additional time in prison. *See Martin*, 109 f.3d at 1183 (Judge Rovner, dissenting). Does the Seventh Circuit believe that eight or nine additional years in prison is not "significant"?[9]

Without any real guidance, judges are left to their own unfettered discretion. It is not surprising in these circumstances that the lower courts' application of the Seventh Circuit's "significant prejudice" rule has been inconsistent. *Compare, e.g., Allen v. United States*, 175 F.3d 560 (7th Cir. 1999) (42 additional months in prison; no prejudice); *United States v. Paz*, 1997 WL 158338 (N.D. Ill. March 31, 1997) (41 additional months in prison; no prejudice); *with*

---

9 "If an increase of eight or nine years is not 'significant,' what is? Does the 'significance' depend on the overall length of the petitioner's term? In other words, would an increase of a year be 'insignificant' for someone serving a ten-year term, but 'significant' for someone serving a two-year term?" *Martin*, 109 F.3d at 1183 (Judge Rovner, dissenting).

United States v. Tai, 972 F. Supp. 434 (N.D. Ill. 1997) (15 to 42 additional months in prison; prejudice found) ("An increase of more than 15 months in the length of a prisoner's sentence seems "significant" to us. *Id.* at 437); *United States v. Hubbard*, 1997 WL 639232 (N.D. Ill. Oct. 6, 1997) (40 additional months in prison; prejudice found).

The arbitrary nature of the Seventh Circuit's rule corrodes public confidence in the federal judicial system and undermines the purpose of the Sentencing Guidelines. As Judge Rovner wrote:

> I cannot help but believe that in the adoption of this "significant" test, we have transformed ourselves into a kind of feudal duchy, with the power to grant or deny a reprieve to wrongfully sentenced prisoners according to our own whim. This is repugnant not only to our office as appellate judges but to the Guidelines themselves, which after all were adopted to achieve greater consistency in sentencing among similar situated defendants.

Martin, 109 F.3d at 1184. Accordingly, this Court should grant the writ and end these inconsistent and arbitrary results.

D. <u>This Case Presents An Issue of Recurring Importance</u>

"Familiarity with the structure and basic content of the [Sentencing] Guidelines . . . has become a necessity for counsel who seek to give effective representation." *United States v. Soto*, 132 F.3d 56, 59 (D.C. Cir. 1997) (quoting *United States v. Day*, 969 F.2d 39, 43 (3d Cir. 1992)).[10] It is true, unfortunately, that many attorneys have not successfully mastered the

10 "Whether lawyers get the Guidelines wrong by misinterpreting the implication of a particular provision or by failing altogether to raise a potentially helpful provision, . . . such drastic missteps clearly . . . amount to errors 'so serious that counsel was not functioning as the 'counsel' guaranteed the defendant by the Sixth Amendment.'" *United States v. Soto*, 132 F.3d at 59 (quoting *Strickland*, 466 U.S. at 687).

workings of the Guidelines. Accordingly, the problem of errors by counsel relating to the Sentencing Guidelines is a common and serious one.

The recurring nature of this issue is reflected in the numerous court of appeals decisions discussed above. *See supra* Section B. Yet, these cases do not fully reflect the scope of the problem. Many more trial court decisions address this issue of counsel's mistakes in interpreting the Sentencing Guidelines, including countless cases that go unreported. In the Seventh Circuit alone, for example, the court of appeals and district courts have addressed this issue on numerous occasions.[11]

In Mr. Glover's case, as in many cases in the Seventh Circuit and other jurisdictions, the courts have conceded that the defendant was sentenced to an incorrect prison term under the Sentencing Guidelines. The courts also have conceded that the defendant's counsel performed below the acceptable professional norm. These courts, however, are unwilling to correct these incorrect sentences. Instead, while acknowledging that "an extra year in custody is significant from the defendant's perspective," *Durrive*, 4 F.3d at 551, the courts have concluded that it is not

11 *See, e.g., Robinson v. United States*, 196 F.3d 748, 754 (7th Cir. 1999); *Day v. United States*, 191 F.3d 455, 1999 WL 528145 (7th Cir. July 20, 1999); *Harden v. United States*, 191 F.3d 456, 1999 WL 547979 (7th Cir. July 20, 1999); *Allen v. United States*, 175 F.3d 560 (7th Cir. 1999); *Martin v. United States*, 109 F.3d 1177 (7th Cir. 1996); *Durrive v. United States*, 4 F.3d 548 (7th Cir. 1993); *Unger v. United States*, 8 F. Supp. 1151 (E.D. Wis. 1998); *Gil v. United States*, 4 F. Supp. 2d 760 (N.D. Ill. 1998); *Fout v. United States*, 165 F.3d 32, 1998 WL 636780 (7th Cir. Aug. 27, 1998); *Davis v. United States*, 1998 WL 142369 (N.D. Ill. March 19, 1998); *United States v. Tai*, 972 F. Supp. 434 (N.D. Ill. 1997); *Burgos v. United States*, 968 F. Supp. 380 (N.D. Ill. 1997); *Gonzalez v. United States*, 967 F. Supp. 326 (N.D. Ill. 1997); *United States v. Paz*, 1997 WL 158338 (N.D. Ill. March 31, 1997); *United States v. Hubbard*, 1997 WL 639232 (N.D. Ill. Oct. 6, 1997); *United States v. Evans*, 1995 WL 423693 *8-9 (N.D. Ill. July 17, 1995).

worth their time and attention unless the additional time in prison achieves some unspecified higher level of "significant increase."

Having defendants serve prison sentences longer than the period called for by the applicable laws and regulations is an anathema to the rule of law. It is unjust, unfair and wrong. Yet, it is the current state of the law, not only for Mr. Glover, but in the Seventh Circuit and several other circuits. Absent intervention by this Court, more and more defendants will become victims of this wrongheaded and misguided "significant prejudice" rule. We therefore urge this Court to grant the writ of certiorari in this case and review this issue of recurring importance.

CONCLUSION

For all of the foregoing reasons, the petition for writ of certiorari should be granted.

Respectfully submitted,



MICHAEL L. WALDMAN
(Counsel of Record)
FRIED, FRANK, HARRIS, SHRIVER
& JACOBSON
1001 Pennsylvania Avenue, NW, Suite 800
Washington, DC 20004
(202) 639-7000

Counsel for Petitioner

207475/DC01

2ND CASE of Level 1 printed in FULL format.

PAUL L. GLOVER, Petitioner-Appellant, v. UNITED STATES of AMERICA, Respondent-Appellee.

No. 98-4021

UNITED STATES COURT OF APPEALS FOR THE SEVENTH CIRCUIT

1999 U.S. App. LEXIS 16876

June 23, 1999 *, Submitted

* After an examination of the briefs and the record, we have concluded that oral argument is unnecessary. Thus, the appeal is submitted on the briefs and the record. See Fed. R. App. P. 34(a)(2).

July 15, 1999, Decided

NOTICE: [*1] RULES OF THE SEVENTH CIRCUIT COURT OF APPEALS MAY LIMIT CITATION TO UNPUBLISHED OPINIONS. PLEASE REFER TO THE RULES OF THE UNITED STATES COURT OF APPEALS FOR THIS CIRCUIT.

SUBSEQUENT HISTORY: Reported in Table Case Format at: *1999 U.S. App. LEXIS 24471*.

PRIOR HISTORY: Appeal from the United States District Court for the Northern District of Illinois, Eastern Division. No. 97 C 8382. William T. Hart, Judge.

DISPOSITION: AFFIRMED.

COUNSEL: PAUL L. GLOVER, Petitioner - Appellant, Pro se, Marion, IL USA.

For UNITED STATES OF AMERICA, Respondent - Appellee: Stephen Andersson, OFFICE OF THE UNITED STATES, Chicago, IL USA.

JUDGES: Before Hon. DANIEL A. MANION, Circuit Judge, Hon. MICHAEL S. KANNE, Circuit Judge, Hon. DIANE P. WOOD, Circuit Judge.

OPINION: ORDER

Paul Glover was convicted of conspiracy, soliciting and receiving kickbacks, money laundering, and tax evasion, and was sentenced to 84 months in prison. He filed a motion under *28 U.S.C. § 2255* to vacate, set aside, or correct his sentence, on the ground that his lawyers were ineffective in failing to argue that the sentencing court should have grouped his money laundering offenses with his conspiracy and kickback offenses under U.S.S.G. § 3D1.2. The district court denied his motion, and we affirm.

In order [*2] to successfully claim ineffective assistance of counsel, Glover would need to show that his counsel performed below a constitutional threshold and that the deficient performance prejudiced him. See *Strickland v. Washington, 466 U.S. 668, 687, 80 L. Ed. 2d 674, 104 S. Ct. 2052 (1984)*. Even if we were to assume that Glover's attorneys performed inadequately, the second prong, prejudice, is missing here. Glover argues that his attorneys' failure to argue the correct interpretation of U.S.S.G. § 3D1.2 led to an adjusted offense level two levels higher than it should have been. This court has held that only a significant increase in the sentence rises to the level of the type of prejudice that will support an ineffective assistance of counsel claim on collateral attack. *Allen v. United States, 175 F.3d 560, 1999 WL 243623 (7th Cir. 1999); Martin v. United States, 109 F.3d 1177, 1178 (7th Cir. 1996); Durrive v. United States, 4 F.3d 548, 551 (7th Cir. 1993)*.

At sentencing, the district court determined that Glover's adjusted offense level under the Sentencing Guidelines was 28 and his criminal history category [*3] was I, resulting in a sentencing range of 78 to 97 months in prison. The court selected a midpoint in the range, sentencing Glover to 84 months in prison. Glover alleges that, but for the errors of his counsel, his adjusted offense level would have been 26, resulting in a range of 63-78 months imprisonment. Thus, he argues, his sentence would have been 6 to 21 months lower than

the 84-month sentence he received. Unfortunately for Glover, under Martin and Durrive, this potential decrease is not sufficiently significant to be cognizable on collateral attack.

The judgment of the district court is AFFIRMED

APP #3

3RD CASE of Level 1 printed in FULL format.

UNITED STATES OF AMERICA, Plaintiff, v. PAUL L. GLOVER, Defendant.

No. 97 C 8382, (95 CR 40)

UNITED STATES DISTRICT COURT FOR THE NORTHERN DISTRICT OF ILLINOIS, EASTERN DIVISION

1998 U.S. Dist. LEXIS 14238

September 3, 1998, Decided

DISPOSITION: [*1] Defendant's motion to vacate sentence [1] denied.

COUNSEL: For UNITED STATES OF AMERICA, plaintiff (97-CV-8382): AUSA, United States Attorney's Office, Chicago, IL.

PAUL L GLOVER, defendant (97-CV-8382), Pro se, Marion, IL.

For PAUL L GLOVER, defendant (95-CR-40): George Joseph Murtaugh, Jr., Attorney at Law, Chicago, IL.

For PAUL L GLOVER, defendant (95-CR-40): Thomas Michael Breen, Martin, Breen & Merrick, Chicago, IL.

U. S. Attorneys: Stephen Dale Anderson, United States Attorney's Office, Chicago, IL.

JUDGES: William T. Hart, UNITED STATES DISTRICT JUDGE.

OPINIONBY: William T. Hart

OPINION: MEMORANDUM OPINION AND ORDER

Following a jury trial, defendant Paul Glover was found guilty of one count of a conspiracy in violation of the Racketeer Influenced and Corrupt Organizations Act, 18 U.S.C. @ 1962(d); 11 counts of soliciting and receiving kickbacks in violation of 18 U.S.C. @ 1954; two counts of money laundering in violation of 18 U.S.C. @ 1956(a) (1) (B) (i); and four counts of tax evasion in violation of 26 U.S.C. @ 7206. He was sentenced to concurrent terms of incarceration with the longest term being 84 months. The term of incarceration is to be followed by [*2] three years' supervised release. Additionally, Glover was required to forfeit $ 325,000. Glover's conviction and sentence were affirmed on direct appeal, where he was represented by the same counsel who represented him at trial. See United States v. Glover, 101 F.3d 1183 (7th Cir. 1996). Less than one year after the decision on appeal became final, Glover filed his present motion pursuant to 28 U.S.C. @ 2255.

Glover presently contends that his guideline sentencing range was incorrectly calculated in that his money laundering offenses should have been grouped with his conspiracy and kickback offenses. See U.S.S. G. @ 3D1.2. He further contends that his counsel were ineffective for failing to adequately raise this issue at the time of sentencing and for failing to raise the issue at all on direct appeal. At the time of sentencing, it was determined that Glover's total

APP #4

offense level was 28 and his criminal history category was I for a guideline range of 78 to 97 months. He was sentenced to 84 months' incarceration. Had the money laundering been grouped with the conspiracy and kickback offenses, the total offense level would have been 26 and the guideline range would have been [*3] 63 to 78 months. n1 Glover's sentence would have had to have been reduced by at least 6 months and possibly up to 21 months, though it is unlikely that he would have been sentenced to the low end of the 63-78 month range since he was not sentenced on the low end of the 78-97 month range. n2

- - - - - - - - - - - - - - - - - - -Footnotes- - - - - - - - - - - - - - - - - - -

n1 The government contends that reducing the newly grouped offense level to 26 would require that an additional level be added based on the separately grouped tax offenses being within 8 points of the 26 offense level. See U.S.S.G. @ 3D1.4(b). However, the tax offenses had an offense level of 16, not the 18 referred to in the government's brief. Perhaps the government was adding two points for obstruction of justice, but the probation officer did not recommend such an adjustment for the tax offenses and no finding to that effect was made. Since the tax offenses would be 10 levels lower than the other group, no adjustment would be made. See id. @ 3D1.4(c).

n2 The tax offenses could have been a basis for not sentencing on the low end. See U.S.S.G. @ 3D1.4(c).

- - - - - - - - - - - - - - - - - - -End Footnotes- - - - - - - - - - - - - - - - - - -

[*4]

At the time plaintiff was sentenced, the Seventh Circuit had not yet considered the particular grouping issue that Glover now attempts to raise. Other circuits had held that separate grouping was required. See, e.g., United States v. Lombardi, 5 F.3d 568, 570-71 (1st Cir. 1993) (grouping money laundering separate from conspiracy/mail fraud); United States v. Taylor, 984 F.2d 298, 303 (9th Cir. 1993) (grouping money laundering separate from wire fraud); United States v. Smith, 13 F.3d 1421, 1428 (10th Cir.), cert. denied, 513 U.S. 878 (1994) (grouping money laundering separate from mail fraud). In United States v. Wilson, 98 F.3d 281, 282-84 (7th Cir. 1996), the Seventh Circuit held that the @ 1956 money laundering offenses and mail fraud offenses involved in that case should be grouped. The government apparently concedes that Wilson would be controlling as to the grouping of Glover's conspiracy, kickback, and money laundering offenses. Glover was sentenced on September 21, 1995, his appeal was argued September 13, 1996, and the decision on appeal was issued December 2, 1996. Wilson was argued April 1, 1996 and issued October 17, 1996.

To succeed on an [*5] ineffective assistance of counsel claim, it must be shown both that counsel's performance was deficient and that the deficient performance prejudiced the defendant. Melvin v. United States, 78 F.3d 327, 329 (7th Cir.), cert. denied, 519 U.S. 963, 136 L. Ed. 2d 301, 117 S. Ct. 384 (1996). The government contends that counsel's performance could not have been deficient, at sentencing or on appeal, for failing to raise an issue that had not yet been decided by the Seventh Circuit. n3 Glover disagrees, arguing that other case law that predated the sentencing made it clear that this was a viable issue that should have been raised by effective counsel. The government also contends that Glover cannot satisfy the prejudice component of an ineffective assistance of counsel claim because the potential effect on his sentence is not significant enough to satisfy the prejudice requirement.

APP #5

Because it is held that Glover does not satisfy the prejudice requirement, it is unnecessary to consider the issue of deficient performance. See Melvin, 78 F.3d at 329.

- - - - - - - - - - - - - - - - - - -Footnotes- - - - - - - - - - - - - - - - - - -

n3 The government also contends that counsel adequately argued the issue at sentencing. As discussed below, none of the deficiency of performance issues need be resolved. Additionally, the adequacy of trial performance issue need not be resolved because, even if the grouping issue was adequately argued at sentencing, there is no dispute that it was not raised at all on appeal.

- - - - - - - - - - - - - - - - - - -End Footnotes- - - - - - - - - - - - - - - - - -

[*6]

Claimed errors in guideline calculations generally are not cognizable on a @ 2255 motion. Martin v. United States, 109 F.3d 1177, 1178 (7th Cir. 1996), cert. denied, 139 L. Ed. 2d 260, 118 S. Ct. 335 (1997); Durrive v. United States, 4 F.3d 548, 549-51 (7th Cir. 1993); Scott v. United States, 997 F.2d 340 (7th Cir. 1993). When, as here, the constitutional basis for relief on such a claim is ineffective assistance of counsel, the potential change of sentence must be a "significant" amount in order to satisfy the prejudice prong of an ineffective assistance of counsel claim. Martin, 109 F.3d at 1178; Durrive, F.3d at 551. Durrive involved a maximum reduction of two offense levels with a possible reduction of sentence from 120 months' incarceration to somewhere between 98 and 108 months. n4 The Seventh Circuit held this was not significant change that would satisfy the prejudice requirement. In Martin, the dispute involved a change of one criminal history category, which is equivalent to two offense levels. The effect in terms of length of incarceration was not specified. n5 The Seventh Circuit appeared to state a per se rule that a change of [*7] two offense levels would not satisfy the significant change requirement. Martin, 109 F.3d at 1178. See also United States v. Hubbard, 1997 U.S. Dist. LEXIS 16023, 1997 WL 639232 *4 (N.D. Ill. Oct. 6, 1997); Gonzalez v. United States, 967 F. Supp. 326, 332 (N.D. Ill. 1997).

- - - - - - - - - - - - - - - - - - -Footnotes- - - - - - - - - - - - - - - - - - -

n4 The low end of the guideline range would have been 87 months, but the Seventh Circuit assumed the sentencing judge would not have gone below the middle of the guideline range.

n5 Martin's original sentence was 137 months. See United States v. Martin, 964 F.2d 714, 716 (7th Cir. 1992); United States v. Martin, 1995 U.S. Dist. LEXIS 3459, 1995 WL 124126 *4 (N.D. Ill. March 20, 1995).

- - - - - - - - - - - - - - - - - - -End Footnotes- - - - - - - - - - - - - - - - - -

The Seventh Circuit has not directly addressed the question of how much time would actually be enough to satisfy the significant change requirement. In Martin, 109 F.3d at 1178, the court states: "Although we recognized in Durrive that any extra time in prison is significant from the defendant's perspective, we adopted a rule of proportionality: the sort of increase produced by a few [*8] levels' difference in sentencing calculations cannot be raised indirectly on collateral attack by complaining about counsel's work." This implies that a change of more than a few levels can be significant. But even taking that

APP #6

implication as authoritative, "few" is not a precise term and the Seventh Circuit does not indicate how the difference in length of sentence should be considered. And by referring to proportionality, the Seventh Circuit may be indicating that the percentage change in sentence is also to be considered--a one-year increase doubling a one-year sentence may be considered significant even if a one-year increase to a 30-year sentence is not.

The present case arguably involves a potential change in sentence that is slightly larger (proportionally) than that involved in Durrive. Durrive involved an offense level change from 30 to 28 n6 and a sentence reduction of 10 to 18.3 per cent. n7 The present case involves an offense level change from 28 to 26 and a sentence reduction of 7.1 to 25 per cent. n8 The potential sentence reduction in the present case is not large enough to satisfy the significant change requirement of Durrive and Martin and other cases [*9] have so held as to proportionally larger changes. See Unger v. United States, 8 F. Supp. 2d 1151, 1998 U.S. Dist. LEXIS 9303, 1998 WL 337476 *3 (E.D. Wis. June 22, 1998) (reduction in total offense level from 28 to 24); Davis v. United States, 1998 U.S. Dist. LEXIS 3624, 1998 WL 142369 *3 (N.D. Ill. March 19, 1998) (two-level reduction changing the sentence of incarceration from 51 months to 37 months). Because the error claimed in the present case did not have a significant effect on Glover's sentence, he does not state any basis for granting @ 2255 relief.

- - - - - - - - - - - - - - - - - - -Footnotes- - - - - - - - - - - - - - - - - - -

n6 United States v. Durrive, 902 F.2d 1221, 1231 n.8 (7th Cir. 1990), indicates that Durrive's total offense level was 30 (28 plus a two-level enhancement). With a criminal history category of II, a two-level change would have changed his guideline range from 108-135 to 87-108, the ranges referred to in Durrive, 4 F.3d at 549, 551.

n7 120 months reduced by 12 to 22 months.

n8 84 months reduced by 6 to 21 months. However, if like Durrive, it is not assumed that the potential reduction is to the low end, but instead is to 6 above the low end as was the original sentence, then the maximum reduction is to 69, for a percentage change of 17.9 per cent (15/84).

- - - - - - - - - - - - - - - - - - -End Footnotes- - - - - - - - - - - - - - - - - -

[*10]

IT IS THEREFORE ORDERED that defendant's motion to vacate sentence [1] is denied. The Clerk of the Court is directed to enter judgment in favor of the government and against defendant denying the @ 2255 motion. If defendant wishes to appeal this order, he must file a Notice of Appeal to the United States Court of Appeals for the Seventh Circuit with the Clerk of the Court, United States District Court for the Northern District of Illinois, 219 South Dearborn Street, 20th Floor, Chicago, Illinois 60604, within sixty (60) days of the entry of the judgment in this case. Any notice of appeal should be accompanied by a request for a certificate of appealability, including a statement as to why a certificate should issue. See 28 U.S.C. @ 2253; Fed. R. App. P. 22(b); 7th Cir. R. 22.1.

ENTER:

APP #7

1998 U.S. Dist. LEXIS 14238, *

William T. Hart

UNITED STATES DISTRICT JUDGE

Dated: SEPTEMBER 3, 1998

JUDGMENT IN A CIVIL CASE

Decision by Court. This action came to hearing before the Court. The issues have been heard and a decision has been rendered.

IT IS HEREBY ORDERED AND ADJUDGED that pursuant to Memorandum Opinion and Order dated September 3, 1998, judgment is entered in favor of the United States [*11] of America and against defendant Paul L. Glover denying the @ 2255 motion.

Date: 9/3/1998

APP #8

United States Court of Appeals

For the Seventh Circuit
Chicago, Illinois 60604

October 7, 1999

Before

Hon. DANIEL A. MANION, *Circuit Judge*

Hon. MICHAEL S. KANNE, *Circuit Judge*

Hon. DIANE P. WOOD, *Circuit Judge*

PAUL L. GLOVER,
Petitioner-Appellant,

No. 98-4021 v.

UNITED STATES of AMERICA,
Respondent-Appellee.

Appeal from the United States District Court for the Northern District of Illinois, Eastern Division

No. 97 C 8382

William T. Hart, *Judge.*

ORDER

Petitioner-appellant filed a petition for rehearing and petition for rehearing en banc. No judge in regular active service has requested a vote on the petition for rehearing en banc, and all of the judges on the panel have voted to deny rehearing. The petition for rehearing is therefore DENIED

APPENDIX C

No. _____

IN THE SUPREME COURT OF THE UNITED STATES
October Term, 1999

PAUL L. GLOVER, PETITIONER

v.

UNITED STATES, RESPONDENT

CERTIFICATE OF SERVICE

Pursuant to this Court's Rule 29.5(b), I certify that I am a member of the Bar of this Court. I further certify that on March 6, 2000, at the time of hand delivery to this Court, I served three copies of the foregoing Petition for Certiorari and the Motion to Proceed In Forma Pauperis, pursuant to Rules 29.3 and 29.4(a), on counsel for the respondent, whose telephone number is (202) 514-2201, by depositing a copy of the same, first class postage prepaid, in the United States mails, addressed to:

Seth P. Waxman, Esq.
Solicitor General of the United States
U. S. Department of Justice, Room 5614
950 Pennsylvania Avenue, NW
Washington, DC 20530-0001

As a result, I state pursuant to Rule 29.5 that all parties required to be served have been served.

MICHAEL WALDMAN
FRIED, FRANK, HARRIS, SHRIVER & JACOBSON
1001 Pennsylvania Avenue, NW, Suite 800
Washington, DC 20004
(202) 639-7000

Counsel for the Petitioner